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Tentative Ruling

Re: ***La Jolla Group II, Management, Inc. v. Noel et al.***
Superior Court Case No. 22CECG00339

Hearing Date: June 23, 2026 (Dept. 503)

Motion: By Plaintiff La Jolla Group, II, Management, Inc. to Correct Judgment

Tentative Ruling:

To grant. (Code Civ. Proc., § 473, subd. (d).) To sign the proposed corrected judgment.

Explanation:

On December 6, 2023, default judgment was entered in favor of plaintiff La Jolla Group II, Management, Inc. ("Plaintiff"). Plaintiff now seeks to correct the December 6, 2023, judgment to add an unintentionally omitted defendant under Code of Civil Procedure section 473 with little to no comment as to its application.

Ordinarily, a court under Code of Civil Procedure section 473 has the authority to correct only clerical errors. (Code Civ. Proc., § 473, subd. (d).) The court cannot amend a judgment to substantially modify or materially alter parties' rights. (E.g., *Rochin v. Pat Johnson Mfg. Co.* (1998) 67 Cal.App.4th 1228, 1237-1238.) It does not matter that a court or a moving party acted under a mistake as long as the court was performing the act it intended to perform. (*Conservatorship of Christopher B.* (2015) 240 Cal.App.4th 809, 816 citing *Smith v. Superior Court* (1981) 115 Cal.App.3d 285, 292.) Correcting a judicial error, as opposed to a clerical error, exceeds the court's jurisdiction and would be void and ineffective. (*Conservatorship of Christopher B.*, *supra*, 240 Cal.App.4th at p. 817.) Judicial errors in a final judgment cannot be corrected except in accordance with statutory procedures or on the limited grounds available for collateral attack. (*People v. Nesbitt* (2010) 191 Cal.App.4th 227, 241.) The difference between a judicial error and a clerical error depends only on whether the error was the deliberate result of judicial reasoning and determination. (*Rochin v. Pat Johnson Mfg. Co.*, *supra*, 67 Cal.App.4th at p. 1238.)

Here, Plaintiff submits only that its counsel inadvertently failed to include Bernice Webb and her heirs in the December 6, 2023, judgment. As noted above, the question does not consider mistake or inadvertence. Rather the question is whether the judgment entered was the deliberate result of judicial reasoning and determination.

Ordinarily, the motion would be denied without prejudice due to the failure of the burden of the moving party to demonstrate applicable relief. However, due to the court's severely impacted docket, the court's review its own docket. On the court's own review, the court finds that there was a clerical error. On August 18, 2023, default was duly entered as to the omitted defendants along with the existing judgment-debtors. Likewise, the request for court judgment, filed October 3, 2023, sought entry of default judgment

against the omitted defendants along with the existing judgment-debtors. It would thus appear that the omission of the omitted defendants was clerical, and the court's intention in approving the application for default judgment was to enter judgment as to all of the omitted defendants and existing judgment-debtors. Accordingly, the court's own motion is granted. The proposed amended judgment filed April 15, 2026, shall be entered as sought.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/22/2026.
(Judge's initials) (Date)